

22PSCV00201 22PSCV00201

County: los-angeles

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Case Number: 22PSCV00201 Hearing Date: August 5, 2026 Dept: G

Defendant Hacienda La Puente Unified School

District's Motion for Leave to File Amended Answer [to the Third Amended Complaint]

Respondent: Plaintiffs Thuy Monge, Jamue

Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy

Plaintiffs Thuy Monge, Jamue Aakhus, Alice

Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy's Motion for Leave to File [Fourth] Amended Complaint

Respondent: NO OPPOSITION

Defendant Hacienda La Puente Unified School

District's Amended Motion for Judgment on the Pleadings [to the Third Amended Complaint]

Respondent: Plaintiffs Thuy Monge, Jamue

Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala,

Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy

TENTATIVE

RULING

Plaintiffs

Thuy Monge, Jamue Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy's Motion for Leave to File [Fourth] Amended Complaint is GRANTED. Plaintiffs are ORDERED to FILE SEPARATELY the proposed FOURTH AMENDED COMPLAINT.

Defendant

Hacienda La Puente Unified School District's Motion for Leave to File Amend Answer [to the Third Amended Complaint] is deemed MOOT.

Defendant

Hacienda La Puente Unified School District's Amended Motion for Judgment on the Pleadings [to the Third Amended Complaint] is deemed MOOT.

BACKGROUND

This

is an employment action. Defendant

Hacienda La Puente Unified School District (the District) allegedly employed plaintiffs Thuy Monge, Jamue Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy (collectively, Plaintiffs). On September 23, 2021, the District allegedly approved a resolution requiring its employees to be vaccinated for COVID-19. Plaintiffs' Christian faith

allegedly precludes them from receiving COVID-19 vaccination because the currently available COVID-19 vaccines allegedly manipulate genetic operations, allegedly defile the body, and were allegedly developed and produced from, tested with, researched on, or otherwise connected with fetal cell lines from aborted fetuses. Plaintiffs allegedly requested religious accommodations excusing them from complying with the vaccine requirement. The District allegedly denied Plaintiffs' requests for accommodations and terminated them.

On March

3, 2022, Plaintiffs filed the Complaint.

On November 14, 2022, Plaintiffs filed the operative Third Amended Complaint, alleging causes of action for (1)–(3) religious discrimination in violation of Government Code section 12940 et seq. and (4) retaliation in violation of Government Code section 12940 et seq.

On

June 4, 2026, the District filed the motion to amend answer. On June 22, 2026, Plaintiffs filed the opposition, and on July 27, 2026, the District filed the reply.

On

June 22, 2026, Plaintiffs filed the motion for leave to file an amended complaint, which is unopposed.

On

July 7, 2026, the District filed the motion for judgment on the pleadings. On July 23, 2026, Plaintiffs filed the opposition, and on July 27, 2026, the District filed the reply.

The

motions are set for hearing on August 5, 2026.

MOTION

FOR LEAVE TO FILE AMENDED COMPLAINT

Plaintiffs

move for leave to file a proposed Fourth Amended Complaint. For the following reasons, the motion is GRANTED.

Legal

Standard

“A

court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) The court’s discretion will usually be exercised liberally to permit amendments of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.)² “A motion to amend a pleading before trial must . . . [i]nclude a copy of the proposed . . . amended pleading, which must be serially numbered to differentiate it; [s]tate what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [s]tate what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”³ (Cal. Rules of Court, rule 3.1324(a).)⁴ The motion must include a declaration that specifies the amendment’s effect, why it is necessary and proper, when the facts supporting the amended allegations were discovered, and why the request was not made earlier.⁵ (Cal. Rules of Court, rule 3.1324(b).)

Nevertheless, even where a moving party complies with the requirements of Rule 3.1324 and such proposed amendment is proper, leave to amend is not an absolute right. (See *In re Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429, noting, “Of course, a trial court also has discretion to deny amendments to pleadings if amendment would not be in furtherance of justice.”) A court may properly deny amendment based on several factors, including the bad faith conduct of the moving party, the belated presentation of the amendment, or the futility of the amendment. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Jenkins v. JP Morgan Chase Bank, Nat. Assn.* (2013) 216 Cal.App.4th 497, 535, suggesting that the court deny leave to amend based on futility where the facts are not in dispute and no liability exists under substantive law; see, e.g., *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 490, holding that the court may deny leave to amend if the moving party needlessly delayed, which prejudiced the opposing party.) Further, leave to amend must be denied where prejudice is shown to the adverse party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical

evidence, or added costs of preparation, including the completion of additional discovery. (Solit v. Tokai Bank, Ltd. N.Y. Branch (1999) 68 Cal.App.4th 1435, 1448; see also Miles, supra, at 739.)

Discussion

As

a preliminary matter, the court must determine whether the motion complies with the requirements of Rule 3.1324. As stated above, the California Rules of Court require the moving plaintiff to identify the proposed changes to the pleading, explain why such changes are necessary and proper, and further explain why the changes were not made sooner. (Cal. Rules of Court, Rule 3.1324, subds. (a)–(b).)

Plaintiffs

provide a redlined copy of the proposed Fourth Amended Complaint. (See Mot. for Leave, Exh. B.) According to Plaintiffs, “The principal

amendments appear in the background allegations . . . and clarify the nature of Plaintiffs’ existing FEHA claims and alleged injuries in light of Defendant’s newly specified immunity defenses.”

(Mot. for Leave, p. 7; see

also Mot. for Leave, Galvan Decl.,

¶ 5.) Plaintiffs did not seek amendment

sooner because the amendments are responses to the District’s arguments in favor of its motions for leave to amend its answer and for judgment on the pleadings. (See Mot. for

Leave, Galvan Decl., ¶¶ 8–9.) Thus,

Plaintiffs’ motion complies with Rule 3.1324, and the court may permit

Plaintiffs to file the proposed Fourth Amended Complaint, unless amendment is not in the furtherance of justice.

The

District did not file an opposition to argue that amendment is not in the furtherance of justice; instead, the District filed a notice of non-opposition. (See Non-Opp.) Since there is no indication of bad faith, belated presentation, futility, or prejudice, the court finds there is no reason to deny amendment.

Accordingly,

the motion for leave to file the proposed Fourth Amended Complaint is GRANTED.

MOTION

FOR LEAVE TO FILE AMENDED ANSWER

Since

the court grants leave to file an amended complaint, the motion for leave to file an amended answer is deemed MOOT.

AMENDED

MOTION FOR JUDGMENT ON THE PLEADINGS

Since

the court grants leave to file an amended complaint, the amended motion for judgment on the pleadings, including the related requests for judicial notice and evidentiary objections, are deemed MOOT.

CONCLUSION

For

these reasons, the motions for leave to file amended complaint is GRANTED. Plaintiffs Thuy Monge, Jamue Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy are ORDERED to FILE SEPARATELY the proposed FOURTH AMENDED COMPLAINT.

The

motion for leave to amend answer is deemed MOOT.

The

amended motion for judgment to the pleadings is deemed MOOT.